# NATIONAL COMPANY LAW TRIBUNAL
# NEW DELHI BENCH (COURT- II)

**COMPANY PETITION NO. (CAA)-07(ND)/2022**
**CONNECTED WITH**
**COMPANY APPLICATION NO. CA (CAA)-132(ND)/2021**

**IN THE MATTER OF SCHEME OF AMALGAMATION:**

**AMONGST**

**BHUWALKA MAKERS PRIVATE LIMITED**

**... Petitioner No.1/Transferor Company**

**AND**

**SUBH LABH TIE-UP PRIVATE LIMITED**

**... Petitioner No.2/Transferor Company**

**WITH**

**LORIKEETS BUILDER PRIVATE LIMITED**

**... Petitioner No.3/ Transferee Company**

**AND**

**THEIR RESPECTIVE SHAREHOLDERS AND CREDITORS**

**Order Delivered on 18.09.2023**

**Section: 230 to 232 of the Companies Act, 2013**

**CORAM**

**SH. ASHOK KUMAR BHARDWAJ, HON'BLE MEMBER (J)**

**SH. L. N. GUPTA, HON'BLE MEMBER (T)**

**PRESENT**

| | | |
|---|---|---|
| **For the Applicants** | **:** | Adv. Vishal Ganda, CS Deepika Singla, Ms. Devina Bhandari, Adv. |
| **For the OL** | **:** | Ms. Hemlata Rawat |
| **For the RD** | **:** | Adv. Shankari Mishra, Ms. Niharika Tanwar |

## ORDER

## PER: SH. L. N. GUPTA, MEMBER (T)

This Company Petition is preferred by the Petitioner Companies under Section 230 to 232 of the Companies Act, 2013 read with the Companies (Compromise, Arrangements, and Amalgamations) Rules, 2016 for approval of the "Scheme of Amalgamation" (hereinafter referred to as 'Scheme' for brevity) as contemplated between the Companies, their Shareholders and Creditors. A copy of the Scheme has been placed on record.

2. The details of the Companies proposed to be amalgamated, as placed on record, are as follows -

2.1 Bhuwalka Makers Private Limited (hereinafter referred to as "the Petitioner No. 1/Transferor Company") having CIN U70101DL1996PTC 307468 is a company incorporated on 19.07.1996 under the Companies Act, 1956. The registered office of the Transferor Company is situated at 632/7, 2nd Floor, Gali No. 2, Adarsh Mohalla, Moujpur, New Delhi, East Delhi-110053.

2.2 Subh Labh Tie-up Private Limited (hereinafter referred to as the "Petitioner No. 2/Transferor Company") having CIN U51909DL2007PTC 358313 is a Company incorporated on 19.09.2007 under the provisions of the Companies Act, 1956. The Transferor Company has its registered office at 1/256 1, Ground Floor, Loni Road Ram Nagar, Shahdara, East Delhi, Delhi-110032.

2.3 Lorikeets Builders Private Limited, formerly T. T. Builders Private Limited (hereinafter referred to as the "Petitioner No. 3/Transferee Company") having CIN U45201DL2005PTC131951 is a Company incorporated on 11.01.2005 under the provisions of the Companies Act, 1956. The Transferee Company has its registered office at A-16, DSIDC Complex, Jhilmil Industrial Area, Delhi-110095.

3. The present Petition has been jointly filed by both the Transferor Companies and Transferee Company. Together they are called '**Petitioner Companies'** hereinafter. The Registered offices of all Companies being in Delhi, and the jurisdiction lies with this Tribunal.

4. From the records, it is seen that the First Motion application was filed by the Petitioner Companies for seeking direction for dispensing with the meeting of Equity Shareholders, Secured Creditors, and Unsecured Creditors of all the Companies. This Tribunal in the First Motion Application bearing No. CO. APPL. (CAA) 132/ND/2021, vide Order dated 03.01.2022 dispensed with the requirement of convening the meetings of the Equity Shareholders and Creditors of the Petitioner Companies.

5. Subsequently, the Second Motion petition was moved by the Petitioner Companies in connection with the Scheme for issuance of Notices to the Central Government, Registrar of Company - NCT of Delhi & Haryana, Regional Director (Northern Region) MCA, Income Tax Authorities, Official Liquidator and to such other Objector(s), if any, and also for publication of the

said Scheme in the newspapers. Accordingly, directions were issued vide Order dated 31.03.2022 of this Tribunal, requiring the Petitioner Companies to carry out a necessary publication with regard to the said Scheme in "Business Standard" (English) and "Veer Arjun" (Hindi) Edition newspapers.

6. In compliance with the above-stated directions, the Petitioner Companies have duly filed an Affidavit of Service dated 13.05.2022 confirming that Notices of the present Company Petition were duly published in the "Business Standard" (English) on 08.04.2022 and "Veer Arjun" (Hindi) Delhi Edition on 09.04.2022 and also, complete paper book was served to the Statutory Authorities namely, RD, ROC, OL and Income Tax Department.

7. Accordingly, the RD has filed its detailed report dated 21.03.2023 which reads thus:

**REPRESENTATION / AFFIDAVIT OF REGIONAL DIRECTOR NORTHERN REGION, MINISTRY OF CORPORATE AFFAIRS, NEW DELHI.**

**I, Sanjay Shorey, Regional Director (NR), having my office at B-2 Wing, 2nd Floor, Pt. Deendayal Antyodaya Bhawan, CGO Complex, New Delhi-110003, do hereby solemnly affirm and sincerely state as follows:-**

1. I am the Regional Director (Northern Region), Ministry of Corporate Affairs, New Delhi and in pursuance of the notification of the Ministry of Corporate Affairs Dated 19.12.2016 in S.O. 4090 (E) I am authorized to swear this Affidavit for & on behalf of the Central Government.

2. The Regional Director, Northern Region, Ministry of Corporate Affairs, New Delhi, has been served with the copy of petition/application filed by the Petitioner/Applicant Companies pursuant to orders by Hon'ble Tribunal passed in Company Petition No. CP(CAA)/07/(ND/2022 connected with Company Application No. CA(CAA)/132/(ND)/2021 filed under Sections 230 to 232 of the Companies Act, 2013 before Hon'ble National Company Law Tribunal Bench at New Delhi which has been examined.

3. That the Petitioner Companies are having its registered office in Delhi within the jurisdiction of this Hon'ble National Company Law Tribunal Bench at New Delhi.

4. That the office of Deponent received the reply of the Petitioner Companies on 23.08.2022. The report of the Registrar of Companies, NCT of Delhi & Haryana have been received vide letter dated 13.01.2023. Copy of the reply of the Petitioner Companies is marked as Annexure-A (without annexures being voluminous) and the report of ROC, NCT of Delhi & Haryana is marked as Annexure -B for kind perusal of the Hon'ble Tribunal.

5. That as per the Scheme of Amalgamation, the appointed date is 01.10.2020.

6. That as per Clause 11 of the proposed Scheme of the Petitioner Companies provides for the protection of the interest of the employees and employee benefits of the Petitioner Companies.

7. That as per clause 17 of the Scheme, the share exchange ratio are as follows: -

- *"Upon the scheme coming into effect and in consideration of the amalgamation of the Transferor Company No. 1 company into and with the Transferee Company pursuant to this scheme, the Transferee Company shall, without any further act or deed and without any further consideration (cash or non-cash), issue and allot equity shares of Rs.10/-*

KA NAYAK
Advocate
No. 10639
d 27/06/2019
27/06/2024

*each, as fully paid-up at par to each shareholder of the Transferor Company No. 1 whose name is recorded in the register of shareholders of the Transferor Company No.. 1 as on the Record Date, in the ratio of 0.13 Equity Shares of Rs.10/- each fully paid up of the Transferee Company to be issued for every one Equity Share of Rs.10/- each fully paid up of Transferor Company No. 1, held by the shareholders ("Share Exchange Ratio").*

- *"Upon the scheme coming into effect and in consideration of the amalgamation of the Transferor Company No. 2 into and with the Transferee Company pursuant to this scheme, the Transferee Company shall, without any further act or deed and without any further consideration (cash or non-cash), issue and allot equity shares of Rs.10/- each, as fully paid-up, at par to each shareholder of the Transferor No. 2 company whose name is recorded in the register of shareholders of the Transferor Company No. 2 as on the Record Date, in the ratio of 0.10 Equity shares of Rs.10/- each fully paid-up of the Transferee Company to be issued for every one Equity share of Rs.10/- each fully paid up of the Transferor No. 2 Company, held by the shareholders ("Share Exchange Ratio)"*

8. That as per Petition, the meeting of equity shareholder, Debenture Holders and Unsecured Creditors of Petitioner Companies was dispensed with by Hon'ble NCLT vide order dated 03.01.2022. There are no secured creditor in any of the Petitioner Companies.

9. That as per the report of Registrar of Companies, NCT of Delhi & Haryana dated 13.01.2023. The Petitioner Companies have filed the Balance Sheet and Annual Return up to 31.03.2022. No prosecution has been filed & no inspection or investigation has been conducted in respect of the Petitioner Company.

10. That as per Clause 30 of ROC, NCT of Delhi & Haryana's report dated 13.01.2023 following observations have been made:

- As per MCA General Circular no. 9/2019 dated 21.08.2019, if the appointed dated is significantly ante-dated beyond a Year from the date of filling, the justification for the same would have to be specifically brough out in the scheme and it should not be against public interest. In this case, the appointed date is 01.10.2020. However, the justification of the same being significantly ante-dated in terms of the above circular is not clearly brought out.
- The Transferor Company 2 and Transferee Company are not doing any significant business activities and appears dormant under section 455 of the Companies Act, 2013.
- Transferor Company 1 has not filed form BEN-2 in regard do its present shareholdings. Further, Transferee Company has not filed updated BEN-2 in respect of current shareholding.
- Refer to clause 16 of the Scheme, the Transferee Company may kindly be directed to comply with the provision of section 232(3)(i) of the Companies Act, 2013 in regard to fee payable on its revised authorized share capital.

**The above submissions are made in para 1 to 10 above after having examined the Scheme, reply of the Petitioner Companies and report of Registrar of Companies. The Hon'ble Tribunal may be satisfied with respect to Scheme. Further, such orders as may be passed as deemed fit and proper.**

**VERIFICATION**

**I, Sanjay Shorey, Regional Director (NR), the Deponent above do solemnly verify and affirm that the submissions of Affidavit in para 1 to 10 are true to the best of my knowledge and have been made believing it to be true.**

**Verified this on** 21 MAR 2023 **day of March, 2023 at New Delhi.**

**DEPONENT**

**Identified By:**

**(Prerna Panwar)**

RD NR/PRERNA PANWAR
सहायक निदेशक/Assistant Director
कार्पोरेट कार्य मंत्रालय/
Office of Regional Director (NHR)
भारत सरकार, New Delhi

Deponent who is present before me

8. From the records, it is noticed that during the course of the hearing on 21.07.2023, the Ld. Counsel appearing for the RD pointed out its objection raised in para 10 of the report (ibid) regarding the appointed date of 01.10.2020 being significantly ante-dated beyond a year from the date of filing of the Scheme. Confronted with the plea, Mr. Virender Ganda Ld. Sr. Counsel appearing for the Applicants submitted that the Applicants would have no difficulty if this Tribunal declares the Appointed Date as 01.04.2021. Further, the Petitioner Companies vide their Affidavit dated 31.07.2023 confirmed -

> *"…….. that the "Appointed Date means October 1, 2020, or such other date as may be fixed or approved by the Hon'ble National Company Law Tribunal", as defined under clause 3 of the Scheme. Therefore, in view of the above, the Petitioner Companies hereby confirms that the Hon'ble Tribunal may be pleased to fix April 1, 2021 or any other date as it deems fit, as the Appointed Date."*

However, we notice that in the order dated 11.08.2023, inadvertently only part of the submission in the affidavit is noted that the Appointed Date qua the Scheme would remain as 01.10.2020. However, in view of the Applicants' submission recorded in the order dated 21.07.2023, and subsequent affidavit dated 31.07.2023 filed by the Applicants, the "Appointed Date" for the Proposed Scheme of Amalgamation is fixed as 01.04.2021.

Regarding the other objections, Ms. Shankari Mishra during the course of the hearing on 21.07.2023, conceded that the Applicants have provided the necessary clarification.

9. The OL has also filed its report dated 12.07.2023 and has not raised any objection toward the approval of the Scheme. The relevant excerpts of the OL report read as reproduced overleaf:

> *"15. That the Official Liquidator on the basis of information submitted by the Petitioner Companies is of the view that the affairs of the aforesaid Transferor Companies do not appear to have been conducted in a manner prejudicial to the interest of its members or to public interest in terms of the provisions of the Companies Act, 2013."*

10. On issuance of notice, the Income Tax Department has filed its report/reply, which reads thus:

Gmail Chandralaw chambers <admin@chandralawchambers.com>

**In the matter of Section 230-232 and other applicable provisions of the Companies Act, 2013 read with Rule 15(1) of the Companies Rules, 2016 in the matter of scheme of amalgamation in respect of M/s. Bhuwalka Makers Pvt. Ltd. (PAN-AABCB3131H)**

**kolkata.ito11.1** <kolkata.ito11.1@incometax.gov.in> Fri, Jul 22, 2022 at 3:34 PM
To: Chandralaw chambers <admin@chandralawchambers.com>
Cc: "Delhi.Dcit.judicial.HC" <Delhi.Dcit.judicial.HC@incometax.gov.in>

Sir/Madam,

Kindly refer to the above.

The report on above cited subject in respect of M/s. Bhuwalka Makers Pvt. Ltd. (PAN-AABCB3131H) is being forwarded for your perusal and necessary action. The above-mentioned assessee has been assessed under this charge till date. As per our record, a demand of Rs. 3,090/- for the A.Y. 2020-21 u/s. 154 of the Income Tax Act, 1961 is lying pending to this department.

As the outstanding demand is lying against the assessee company, hence, this office has put its objection over the assessee company in the said amalgamation matter.

With regards,

(Brojo Gopal Bose)

I.T.O., Ward-11(1), Kolkata

Gmail

Chandralaw chambers <admin@chandralawchambers.com>

2

**Fwd: Allocation of Company Petition No. in the matter of Section 230-232 and other applicable provisions of the Companies Act, 2013 read with Rule 15(1) of the Companies (Compromises, Arrangements and Amalgamations) Rules, 2016 and the ruled frames under the National Company Law Tribunal Rules, 2016, and in the matter of Scheme Of Amalgamation Between Bhuwalka Makers Private Limited ("Transferor Company-1), PAN: AABCB3131H & Subh Labh Tie-Up Private Limited ("Transferor Company 2) PAN : AALCS2109J with Lorikeets Builders Private Limited ("Transferee Company") PAN : AACCT1588P-reg.**

**kolkata.ito5.1** <kolkata.ito5.1@incometax.gov.in> Fri, Aug 19, 2022 at 6:00 PM
To: Chandralaw chambers <admin@chandralawchambers.com>

Kindly refer to the trailing e-mail and find demand in the below mentioned case.

Analysis and Recoverability status report

M/s Subh Labh Tie-Up Private Limited, PAN : AALCS2109J

| Sr. No. | AY | DIN | Demand Section | Date of Order | Demand Outstanding (Rs.) | Ammount Difficult to Recover (Rs.) | Amount Collectible (Rs.) |
|---|---|---|---|---|---|---|---|
| 1 | 2016-17 | 201620163703262003 6C | 220(2) | 03.03.2017 | 8 | | 8 |
| 2 | 2017-18 | 202020173701990156 6C | 220(2) | 04.11.2020 | 58 | | 58 |
| 3 | 2018-19 | 201920183701582771 1C | 1431a | 14.04.2019 | 600 | | 600 |

Regards,

Prasanta Kumar Kundu

Income Tax Officer,

Ward-5(1),Kolkata

Gmail

Chandralaw chambers <admin@chandralawchambers.com>

3

**Fwd: Allocation of Company Petition No. in the matter of Section 230-232 and other applicable provisions of the Companies Act, 2013 read with Rule 15(1) of the Companies (Compromises, Arrangements and Amalgamations) Rules, 2016 and the ruled frames under the National Company Law Tribunal Rules, 2016, and in the matter of Scheme Of Amalgamation Between Bhuwalka Makers Private Limited ("Transferor Company-1), PAN: AABCB3131H & Subh Labh Tie-Up Private Limited ("Transferor Company 2) PAN : AALCS2109J with Lorikeets Builders Private Limited ("Transferee Company") PAN : AACCT1588P-reg.**

**delhi.dcit25.1** <delhi.dcit25.1@incometax.gov.in> Wed, Jul 27, 2022 at 7:50 PM
To: Chandralaw chambers <admin@chandralawchambers.com>

Sir,

Kindly refer to the trailing e-mail and find demand in the below mentioned case.

Analysis and Recoverability status report

M/s Lorikeets Buliders Pvt Ltd

| Sr. No. | AY | DIN | Demand Section | Date of order | Demand outstanding(Rs.) | Amount difficult to Recover(Rs.) | Amount Collectible(Rs.) |
|---|---|---|---|---|---|---|---|
| 1 | 2013-14 | 20152013100119800 53C | 143(3) | 30.03.2016 | 15,01,719 | | 15,01,719 |

Regards

—
Hardayal Meena
Asst. Comm. of Income Tax,
Circle - 25(1), Delhi.
[Quoted text hidden]

11. From the record, it is observed that the Transferee Company has given an undertaking vide its Additional Affidavit dated 09.09.2022 stating that if any Tax dues are claimed by the Income Tax Department after approval of the Scheme, the same will be paid by the Transferee Company. The said undertaking is reproduced below:

**ADDITIONAL AFFIDAVIT ON BEHALF OF THE TRANSFEREE COMPANY**

I, Ghanshyam Dass Sharma, son of Sh. R.C Sharma, resident of 1/2561, Loni Road, Ram Nagar, Shahdara, Delhi -110032, aged about 53,solemnly affirm and state as under:

1. That, I am the authorized signatory for and on behalf of the Transferee Company and am well versed with the facts and circumstances of the case and as such I am competent to depose the present Affidavit on behalf of the Transferee Company.

2. I state that the report affidavit dated August 20, 2022, filed on behalf of the Income Tax Department in the captioned petition specifies the outstanding demand as against the Transferor No.1 Company and Transferor No.2 Company as follows:

➢ **Transferor No.1 Company:**

| S. No. | Assessment Year | Applicable Section of the Income Tax Ac, 1961 | Outstanding demand (in INR) |
|---|---|---|---|
| 1. | 2020-21 | 154 | 3,090 |
| Total (Rupees Three thousand ninety only) | | | 3,090 |

➢ **Transferor No.2 Company:**

| S. No. | Assessment Year | Applicable Section of the Income Tax Ac, 1961 | Outstanding demand (in INR) |
|---|---|---|---|
| 1. | 2016-17 | 220(2) | 8 |
| 2. | 2017-18 | 220(2) | 58 |
| 3. | 2018-19 | 143(1a) | 600 |
| Total (Rupees Six hundred sixty-six only) | | | 666 |

**Transferee Company:**

| S. No. | Assessment Year | Applicable Section of the Income Tax Ac, 1961 | Outstanding demand (in INR) |
|---|---|---|---|
| 1. | 2013-14 | 143(3) | 15,01,719 |
| Total (Rupees fifteen lakh one thousand seven hundred nineteen only) | | | |

3. I state that the Transferee Company will pay all the above-mentioned outstanding demand of the Income Tax Department on behalf of all the Petitioner Companies.

4. That, the Transferee Company undertakes to clear all additional outstanding demand, if any of the Income Tax Department that is crystallized and appropriately ascertained in future in respect of the Transferor No. 1 and Transferor No. 2 Company.

5. That by virtue of amalgamation between the Transferor Company No. 1, Transferor Company No. 2into transferee company there is no change in the existence of Transferee Company, and it shall be able to pay all the dues of the Income Tax Department.

**DEPONENT**

**Verification:** 09 SEP 2022

Verified on the ------ day of 2022 that the contents of the above affidavit are true and correct to the best of my knowledge and belief. No part of it is false and nothing material has been cancelled therefrom.

**DEPONENT**

12. Thus, it is observed that vide Additional Affidavit dated 09.09.2022 (ibid), the Petitioner Companies have undertaken that the outstanding demand against all the Petitioners Companies raised by the Income Tax Department shall be paid by the Transferee Company.

13. In view of the foregoing facts, discussion and considering the approval accorded by the Shareholders and Creditors of all the Petitioner Companies to the proposed Scheme and no sustainable objections having been raised by the Office of the Official Liquidator, Regional Director (North), Income Tax Department or any other interested party, there does not appear to be any

impediment in granting sanction to the Scheme. **Accordingly, in the sequel to the above, sanction is hereby granted to the Scheme of Amalgamation proposed by the Petitioner Companies under Section 230 to 232 of the Companies Act, 2013.** The sanctioned Scheme of Amalgamation shall be binding on the Transferor Company and Transferee Company (Petitioner Companies) and their Shareholders and Creditors. The Petitioner Companies shall remain bound to comply with the statutory requirements in accordance with law.

14. Notwithstanding the above, if there is any deficiency found or violation committed qua any enactment, statutory rule or regulation, the sanction granted by this Authority to the Scheme will not come in the way of action to be taken, albeit, in accordance with law, against the concerned persons, Directors, and Officials of the Petitioner Companies.

15. While approving the Scheme as above, it is clarified that this Order should not be construed as an order in any way granting exemption from payment of Stamp Duty, Taxes, or other statutory dues if any, and payment in accordance with law or in respect to any permission/compliance with any other requirement, which may be specifically required under any law. Further, the approval of the Scheme would in no manner affect the tax treatment of the transactions under the Income Tax Act 1961 or serve as any exemption or defence for the Petitioner Companies against tax treatment in accordance with the provisions of the Income Tax Act, 1961.

16. **THIS TRIBUNAL FURTHER DIRECTS** with respect to Transferor Company and Transferee Company, that:

(i) Upon the sanction becoming effective from the appointed date of amalgamation i.e., 01.04.2021, the Transferor Company shall stand dissolved without undergoing the process of winding up;

(ii) All benefits, entitlements, incentives, and concessions under incentive schemes and policies that the Transferor Company are entitled to including under Customs, Excise, Service Tax, VAT, Sales Tax, GST and Entry Tax and Income Tax laws, subsidy receivables from Government, grant from any governmental authorities, direct tax benefit/exemptions/ deductions, shall, to the extent statutorily available and along with associated obligations, stand transferred to and be available to the Transferee Company as if the Transferee Company was originally entitled to all such benefits, entitlements, incentives and concessions;

(iii) All contracts of the Transferor Company, which are subsisting or having effect immediately before the Effective Date, shall stand transferred to and vested in the Transferee Company and be in full force and effect in favor of the Transferee Company and may be enforced by or against it as fully and effectually as if, instead of the Transferor Company, the Transferee Company had been a party or beneficiary or obliged thereto;

(iv) All the employees of the Transferor Company shall be deemed to have become the employees and the staff of the Transferee Company with effect from the Appointed Date, and shall stand transferred to the Transferee Company without any interruption of service and on the terms and conditions no less favorable than those on which they are engaged by the Transferor Company, as on the Effective Date,

including in relation to the level of remuneration and contractual and statutory benefits, incentive plans, terminal benefits, gratuity plans, provident plans and any other retirement benefits;

(v) All liabilities of the Transferor Company, shall, pursuant to the provisions of section 232(4) and other applicable provisions of the Company Act, 2013, to the extent they are outstanding as on the Effective Date, without any further act, instrument or deed stand transferred to and be deemed to be the debts, liabilities, contingent liabilities, duties and obligations etc. as the case may be, of the Transferee Company and shall be exercised by or against the Transferee Company as if it had incurred such liabilities;

(vi) All proceedings now pending by or against the Transferor Company be continued by or against the Transferee Company;

(vii) As observed by RD in its report, the Transferee Company shall comply with the provisions of Section 232 (3)(i) of the Companies Act 2013 in regard to fee payable on its revised authorized share capital.

(viii) As already undertaken by the Petitioner Companies vide their Additional Affidavit dated 09.09.2022 (ibid), the outstanding demand against all the Petitioner Companies raised by the Income Tax Department shall be paid by the Transferee Company. Further, the Income Tax department is permitted to retain its recourse for recovery in respect of demand and any other future liabilities of the transferor Company in respect of the assets sought to be transferred under the proposed scheme and shall be payable by the transferee company;

(ix) That any person interested shall be at liberty to apply to this Tribunal in the above matter for any directions that may be necessary.

17. The Petitioner Companies shall within thirty days of the date of the receipt of this Order or on sanction of the Scheme with respect to the Transferee Company, whichever is later, cause a Certified Copy of this Order to be delivered to the Registrar of Company for registration and on such Certified Copy being so delivered, the Transferor Company shall be dissolved and the Registrar of Company shall place all documents relating to the Transferor Company on the file kept by him in relation to the Transferee Company and the files relating to all the Petitioner Companies shall be consolidated accordingly.

Sd/-
**(L. N. GUPTA)**
**MEMBER (T)**

Sd/-
**(ASHOK KUMAR BHARDWAJ)**
**MEMBER (J)**